

Creating Appurtenant Easements in Michigan

Appurtenant easements may be created in several ways.

Easement by necessity

Commonly seen when land is landlocked with no access to roads. Laws generally require access. The servient tenement is often entitled to compensation for the interest taken.

Easement by prescription

These are created when another person uses land without the owner's permission for a statutory period of time. In Michigan, the use must continue uninterrupted for 15 years.

Easements by grant

These are created with a specific written agreement between two landowners, often through a deed. For example, an owner who has an archery range in the lower portion of a property may convey the land above and include the area below, but reserve an easement to use the archery range.

Easements by implication

These are created by the parties' conduct. For example, if you sell oil rights to your land, this implies that you'll grant the oil company access, allow it to bring in equipment, and drill for oil.

Easements by condemnation

These are created when the government exercises its right of eminent domain. Condemnation doesn't mean the property is worthless or will be destroyed. It means the government takes title to the land (often just a portion of it, and with compensatory payment). This occurs when the government decides to widen roads, install sidewalks and curbs, etc.